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Conceptualising criminal wars in Latin America

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ABSTRACT

Violence rising in Latin America since the early 1990s has puzzled media, policymakers and academia. Characterising high scales of violence in non-political confrontations has been one of the main challenges. The main argument of this essay is that the hybrid criminal nature of violence in Latin America by non-state organisations has pushed the discussion to several misinterpretations and conceptual stretching that produces fog rather than clarity. Instead, this essay proposes a concept of criminal war that can capture the complex nature of violence in Latin America by drawing convergences and divergences from diverse fields of literature and confronting usual mischaracterisations in current Latin American research.

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Introduction

Contemporary violence on the scale witnessed in Latin America since the early 1990s is a subject of study that scholars have partially grappled with in several fields: economics, political science, international relations, international law, anthropology, sociology, and history. Naturally, violence in high levels of occurrence committed by criminal organisations is a challenging phenomenon to explain. Moreover, all these fields of study have different interpretations of how violence occurs or how criminal organisations behave.

Since the 1990s in Latin America, criminal organisations have benefitted from a growing illicit drug market in the United States (Bergman 2018). The deregulation of guns in the US led to massive arms smuggling (Dube, Dube, and García-Ponce 2013; Esparza and Weigend 2015), and barriers to international trade were steadily lifted due to the expansion of free trade agreements. This liberalisation process led to more opportunities for illicit trade across borders and via cargo ships (Herrera 2019). These economic changes happened in highly unequal but growing economies with large youth bulges. Combining these factors created the ideal pre-conditions for criminal wars: a perfect storm of state weakness, the weak rule of law, endemic corruption, and the availability of resources with which to build armies. Soon after, states fostered violent conflicts by prosecuting criminal organisations through the use of military techniques. Paradoxically, although the outcomes have been disastrous, governments in Latin America to date continue to respond to international drug prohibition as a result of continuous demands and pressure from the US government (Felbab-Brown 2019).

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The main argument of this essay is that violence trends in Latin America can be confused using concepts from a wide range of social sciences. These concepts were meant for political violence, not interpersonal or 'private' violence. While using these concepts, many scholars have not noticed that they bypassed the importance of boundaries within their fields and are drawing essentially contested concepts to an ill-defined subject.

Using civil wars to describe what happens with organised crime is the perfect example of this tendency. As Kalyvas (2015) argues, the literature on civil wars relies on the political content of civil wars, different from criminal organisations driven by profit and protection rackets. Even if criminal violence trends present themselves like those in civil wars, such as profiteering (Kaldor 2006) and rebel governance as racket protection (Arjona, Kasfir, and Mampilly 2015), Kalyvas (2001) asserts that the main drivers of civil war are political motivations.

Indeed, concepts like civil wars are ideal types (Weber 1946) and, simultaneously, essentially contested concepts (Gallie 1956; Collier, Hidalgo, and Maciuceanu 2006), because of the changing historical trends of violence and conflict. Concept formation history is directly linked to ideas formed to respond to their contexts and trends (Skinner 1969). In this case, war and violence are intrinsically connected by state making and state formation. Naturally, researchers find answers from the seminal work of Tilly (1985) on understanding high-scale violence.

Lessing (2015) formally coined the concept of criminal wars. This concept is grounded in the historical examples of battles between criminal organisations – called turf, gang or bandit wars – that have occurred in Latin America since the late 1990s. This conflict trend arose after the so-called 'lost decade' of growth when the region experienced sustained economic development (Bértola and Ocampo 2012). However, growth in this period was unequal. Parallely, in this decade Latin America experienced a process of democratisation, pacification after civil wars, and widespread state repression.

Simultaneously, Latin America has seen a new wave of militarised responses due to pressure from the US government on Latin American governments to tackle transnational drug trafficking under the framework of the international treaties that enforce drug prohibition. The result: Latin America has become a region as deadly as countries experiencing civil or conventional wars. Since then, criminal organisations have resisted military crackdowns while advancing their market capture of various illicit goods, especially marijuana and poppy, to produce heroin and synthetic drugs (Bergman 2018).

Although the studies of conflict, war, violent crime and terrorism share common traits, this literature review of the conduction of criminal wars in Latin America deals with the hybrid nature of this kind of conflict before appropriately adapting or discarding elements from these areas. This review aims to illustrate the general findings and dynamics of violence in the current criminal wars to understand this concept's usage and question the vast concept stretching for these cases. This article is a conceptual essay and not a comprehensive systematic review. Interesting reviews can be found in Imbusch, Misse, and Carrión (2011), Cruz (2016), Albarracín and Barnes (2020) and Vilalta (2020). Moreover, this essay primarily draws examples from Latin America, focused on but not limited to Mexico, Colombia, Brazil, Peru, Central America, and some cases in the Caribbean.

It is necessary to clarify and distinguish criminal wars to separate them from other phenomena like civil wars. They might look the same in terms of some events, but criminal wars have ontological, epistemological and practical differences. Criminal wars should be

understood as armed conflicts, paired with but separate from civil wars. Although drug trafficking is a transnational phenomenon, these conflicts are defined by how each government – national or subnational – confronts criminal organisations.

This essay is separated into two sections. The first section includes a review of the status of the discussion on the nature of criminal violence in Latin America and why the concepts used so far fall short of encompassing this phenomenon. The second section is a defence of criminal wars as an inclusive concept to work further in comparative terms and from a political economy perspective. The political economy perspective relies on how markets are shaped by governmental policy. In the case of the criminal wars, these markets are illicit markets prosecuted by governments. In other words, strategies of prosecution of illegal goods are a form of deadly regulatory policy (Flom 2022).

The conceptual struggle for criminal wars

The obvious comparisons between civil and criminal wars raised because of the increase of homicide rates in Latin America. Researchers, journalists and governments have used a wide range of concepts to describe the dynamics of violence. Some are essential intellectual efforts to comprehend such a novel and complex issue. Nonetheless, some comparisons reach exaggerations or understandable misconceptions.

There are five examples of this discussion: state failure, criminal insurgencies, counterinsurgency, terrorism and militarisation. In the case of state failure, Kenny and Serrano (2013) criticised the use of this essentially contested concept to qualify a situation that could represent more of a collapse of part of the state judicial apparatus. In the Mexican case, this collapse happened after the state confronted an unexpected retaliation from criminal organisations after the army's deployment in 2006. However, it was not the collapse of the whole Mexican state. Indeed, violence and criminal governance in Mexico regions indicate state weakness. However, the heavy burden of the ideological implications of failed state paraphernalia in the US foreign policy frame leads to discussions closer to Western ideals of the state than its actual development in Latin America (Call 2008).

In the second case, the civil war terms filtrated easily into the Mexican discussion, especially via two authors: Grillo (2012) and Schedler (2018). As Kalyvas (2015) argued, using terms based on the research programme on civil war can lead to misleading interpretations. Grillo mischaracterises the ontological origin of criminal organisations by using the term 'criminal insurgency', arguing for this term because the word 'revolt' is in the Merriam-Webster dictionary definition of an insurgent, equating revolt to all violence against the state. However, several forms of violence used against authority are not necessarily revolutionary or insurgent. On the contrary, evidence about the orientation of criminal organisations' tactics demonstrates that these organisations seek to change prosecution policy, not to begin a revolution. Also, this gives the false impression that these organisations use the exact mechanisms, techniques, ideas and mobilisation repertoire used by guerrillas for the same political goal: to replace the country's elite.

In the same terms, Sullivan and Elkus (2008) argue that insurgency means changing policy with violence. Furthermore, Bunker and Sullivan (2010) argue that drug cartels have come to rule territories in several countries opposed to the state. Again, this falls into a mischaracterisation of the function of the use of violence. While in civil wars, insurgencies govern territories (rebel governance) to advance an ideological goal, territorial advances are for protecting illicit private markets as criminal governance (Lessing 2017).

Furthermore, De la Calle and Schedler (2021) situate Mexico's political regime as the central part of the conflict by using civil war. However, the nexus between the two is unclear. Quite the reverse, as Varese (1997, 2001, 2018) explains; for the cases of mafias and democratic tensions in Hong Kong and Russia, democracy is a space of opportunity for offering racketeering services to politicians or pressure groups. In this case, democracy is the scenario but not the main explanatory structure of violence. Furthermore, violent crime also happened in socialist economies, such as the Soviet Union or several parts of Africa (Bayart, Ellis, and Hibou 1999). Of course, Varese's cases do not explain how mafias create large-scale violence in Latin America. His insights in the organised crime literature are closer to criminal organisations than guerrillas.

The aforementioned Latin American literature on criminal insurgencies borrowed notions from the debate on economic motivations in civil wars proposed by Collier and Hoeffler (2004) and Kaldor (2006). They did this by posing a supposed protracted ideological agenda of violent criminal organisations in Latin America, combined with their profits from transnational drug trafficking. Schedler (2018) argued that criminal violence should be understood as an 'economic civil war'. It was, again, assuming an ideological agency of criminal organisations. However, as another pitfall of concept stretching, these notions are highly contested. Indeed, economic motivations and greed are relevant in conflict, but Kalyvas (2001, 2015; Berdal 2003, 2005) have argued that ideological motivations never stopped in civil wars during the twentieth century, and extraction was mainly functional for political purposes.

Furthermore, Felbab-Brown (2005) and Gutiérrez Sanín (2004; 2008) criticised the use of these notions to explain Latin American cases such as Peru and Colombia because *Sendero Luminoso* and the *Fuerzas Armadas Revolucionarias de Colombia* (FARC) were using drug trafficking as a funding mechanism. Preliminary results from the recent demobilisation process of the FARC in Colombia (UNSC 2020) back up this argument. Most FARC members effectively demobilised after the peace agreement instead of converging into drug trafficking. This finding challenges the idea that economic motivation is enough to participate in a civil war.

The second problem that Kalyvas (2015) found in the usage of new wars, or greed and grievance frameworks for organised crime, was that it mischaracterises the motivations of individual members of violent organisations as the primary driver of conflicts rather than the conflict dynamics. In other words, it subtracts the agency of the state from the equation. Kalyvas noticed organised crime uses violence strategically and sporadically because these organisations are evading prosecution. However, when governments used militarised and counterinsurgency tactics against these organisations, these had to retaliate, starting the cycles of violence we know today.

However, it is noticeable that crime and conflict occur together. There is an extensive debate about this tactical use of crime to fund a war or whether criminal organisations can fuel those conflicts. For the purposes of this debate, I concur with some of the findings of De Boer and Bosetti (2015) in their extensive review of the conflict–crime nexus. Criminal organisations tend to foster civil wars as spoilers, and some resource extraction can cause violence. However, this review was mainly done for civil wars in the Middle East. Again, the Colombian case shows the possibility of several wars happening in one region with different dynamics, although they sometimes converge. The signing of the FARC Peace Agreement in 2016 dramatically reduced homicides in that country, but criminal violence remains, showing that conflicts can materialise in parallel.

Derived from the securitisation (Buzan, Wæver, and Wilde 1998) of criminal violence as insurgency, two more strains of conceptual malformation grew: counterinsurgency and the characterisation of criminal organisations as terrorists. This led to policy circles fostering counterinsurgency, and academic discourse justifying it. On the academic side, again Bunker (2012) argues that the violent nature of recent criminal organisations can be compared with insurgencies, justifying that these organisations challenge the 'Westphalian state order' – once more repeating the previous mischaracterisations. The criminal insurgency literature relied on the call of Metz (2012) to re-think counterinsurgency away from the classic challenges. However, Metz also argues that policymakers should be wary of the consequences of a maladapted use of counterinsurgency.

Contrary to those ideas, Ucko (2013) has criticised the expansion of counterinsurgency techniques for conflicts and situations beyond the classical missions by Western powers during the twentieth century. I concur with Ucko (2012) that a more comprehensive understanding of war is fundamental beyond a narrow western-centric approach to insurgency. The consequences have already been documented in Latin America. Felbab-Brown (2009) showed how counterinsurgency techniques against criminal organisations backfired because these gained popular support in specific communities and strengthened their capacity to respond to the military. In particular, Pérez Ricart (2020) documented how the use of the 'kingpin strategy' (beheading criminal organisations) fostered by the United States Drug Enforcement Administration (DEA) caused even worse cycles of violence in the region.

On the terrorism side of the discussion, indeed, criminal organisations in the region have used terror tactics: bombings, vehicle-ramming or rocket attacks. However, the field of terrorism studies is highly contentious. The same criminal insurgency authors filtrated the terrorism discussion into the criminal violence field (Teiner 2020). However, I concur with Phillips (2018) and Shirk and Wallman (2015). Bringing the essentially contested concept of terrorism carries confusion by re-introducing a contentious political ideology debate. However, understanding terrorist tactics as a communication method has helped criticise the use of counterinsurgency and anti-terrorist policies for organised crime. Phillips (2015) showed convincingly how this strategy failed in Mexico, fostering cycles of violence. Again, this empirically shows how treating a criminal organisation as an insurgent or terrorist organisation has not worked so far.

Finally, although the debate about militarisation has brought wider clarity and engagement with the empirical evidence regarding the question of violence in Latin America, this field of research has fallen short of characterising the whole phenomenon. All the regional cases show that the military has intervened with their tactics, such as dismantling organisations with violence rather than detentions and substituting policing techniques (Garzón and Bailey 2016; Flores-Macías and Zarkin 2021; Flores-Macías 2018; Pion-Berlin and Trinkunas 2011). I concur with their observations: the military fosters violent cycles rather than stopping them. However, part of this literature needs to carefully connect the origin of the conflict: the international pressure for militarising the war on drugs in Latin America.

Evidence indicates that the onset of these wars' most violent phases came from the pressure of the US government. This pressure escalated their regional enforcement operations via military forces (Andreas 1995; Nadelmann 1989; Levine 2003; Serrano 2003). That is why there were high homicide rates in the region after the 1990s. Indeed, the presence of the military in Latin America on drug trafficking operations is historical (Loveman 1999). Furthermore, anti-drug prohibition precedes militarisation (Gootenberg and Campos 2015).

However, the difference is in how governments steadily escalated the use of force coming from the pressures of the US government.

Effectively, it can be argued that not only Latin America deploys violent methods to enforce drug prohibition. However, the critical difference relies on the diversity of techniques used. For example, it seems that the increase in homicide rates in cities of the United States or Europe was produced by disorganised gangs (Reuter 1983; Hagedorn 2005, 2008). These countries did not have militarised interventions because they did not implement the prohibition regime in their territories in the same way the US pressures Latin American governments to do. Instead, they repress using police brutality, high incarceration rates, and race labelling (Hinton and Cook 2021; Williams 2015). In Latin America, the full-scale military challenge to criminal organisations had two consequences. Either these entrepreneurial organisations perish by militarised force, or transform themselves, usually from protection rackets of illicit markets (in terms of Gambetta 1996) into fully operational armies.

Extensive literature has pointed out how the state fosters violent retaliation by criminal organisations. Jones (2016), Durán-Martínez (2017), Lessing (2017), Trejo and Ley (2020), Wolf (2009), Yashar (2018), Castillo and Kronick (2020), Moncada (2013), Arias (2006) and Koonings (2012) have carried through the analysis of the increase of violence in Latin America from diverse perspectives. Nonetheless, they all include a remarkable coincidence: the use of military warfare has led to increased violence. Alternatively, the massive deportation of gang members from the US to El Salvador and Guatemala in Central America created, almost instantly, brand-new criminal armed organisations (Cruz 2016; Wolf 2010). None of the cases they have studied escapes the influence of the US government or the prohibition regime by using militarised violence.

The previous examples show how scholars, journalists and policy circles engage in concept stretching (Sartori 1970) – although, in epistemological terms, these debates are part of a historical process of theory building and crafting a research programme around the criminal war question. For Lakatos (1976) all theories have fundamental presumptions that distinguish them from others. Those are called *hardcore*. Subsequently, evidence from *hardcore* and peripheral research supports it. Even when further research discards peripheral findings, a theory does not become obsolete in the research process if the *hard core* remains falsifiable and resistant to tests (Chalmers 2013). In criminal wars, basic assumptions are currently in development. Furthermore, more sophisticated scholarship on Latin America has appeared, and I review it below. This article is part of the primary endeavours of building the *hardcore* criminal wars theory.

Researchers have found convergences of criminal wars from several angles, such as violence logics and techniques, conformation and motivations of non-state violent organisations, protection racketeering and illicit traffic activities, patterns of diffusion of homicide, onset, duration and termination of conflicts, mobilisation mechanisms, structures, and individual profiles of violence specialists. Nevertheless, for clarity, these concepts must be tested and built congruently with criminal wars' nature. Moreover, some of them probably are contested (Gallie 1956; Collier, Hidalgo, and Maciuceanu 2006) within their fields. Therefore, empirical results must lead to adaptations or reinterpretations.

The seminal literature on organised crime did not conceive the massive use of violence as part of the standard repertoire of actions in which these organisations could engage. Also, the studies of war and conflict have struggled with the possibility of non-state actors

that do not have profound and inheritable ideological motivations. In the case of organised crime literature, Gambetta (1996) in *The Sicilian Mafia* sharply portrays the political economy of organised crime. Violence is inherently costly and usually avoided, but it can happen under certain circumstances. In civil war literature, scholars use Kalyvas's (2006) *The Logic of Violence in Civil War* to explain organised crime violence because it describes how violence is used strategically in conflict. However, it is essential to remember that his focus is on political violence, not criminal.

Nonetheless, both Gambetta and Kalyvas's books show a seminal clarity in understanding the perfectly ontological source of their subjects' motivations in order to frame them in the landscape of strategic decisions theory. Unsurprisingly, scholars have complimented both books on explaining criminal wars in Latin America. One is helpful for the inherent motivations and structures of organised crime, and the other is on violence against the state. I argue that criminal wars in Latin America reflect these two phenomena.

Lessing coined the term 'criminal war' because these two words together can be a good concept. Paradoxically, Lessing (2015, 2017), in his book and in his seminal article, does not define a single criminal war concept. Instead, he underlines a theory of their logic and proposes a typology of criminal wars. The logic of his violent lobbying theory is the main component of his concept because it shows how criminal organisations use violence strategically to protect illicit markets. However, Lessing wants to differentiate disputes between criminal organisations (turf wars) and the state (cartel–state).

Nonetheless, other scholars recognise a grey zone between cartel and turf wars. Therefore, it is essential to integrate the political economy side of the conflict. There is an international drug prohibition regime that, combined with the treaties regarding transnational organised crime, fosters the otherwise exceptional use of force, either by causing their onset or by amplifying their duration. These conflicts' onset coincided with the US government's pressure to deploy militarised tactics and agencies to regulate an illicit market that used to be controlled by criminal law agencies since Ronald Reagan confronted the 'crack epidemic' in the early 1980s. Therefore, I consider that the differentiation between cartel wars and turf wars is essentially artificial. The militarised governmental interventions nurture both types of criminal war cycles. Both concepts are useful but they represent the two sides of the same coin. As Sartori (1970) argues, concepts that are too specific can lose their inclusiveness and capacity to be compared in the future.

In that sense, the directionality or logic of violence is not enough to give the concept of criminal wars the strength to understand what happens in Latin America. Profit cannot be enough as the distinction. The massive use of violence or policy change via *violent lobbying* by criminal organisations cannot either. The key marker is the government's military use of force beyond the criminal law paradigm. The justification for this use of force is the existence of a new international system of drug prohibition and extraordinary measures against transnational organised crime.

An important caveat is necessary for the case of Brazil. Indeed, apparently, as Lessing (2017) argues (chapter 6, *Making Peace in Drug Wars*), the setting for criminal wars in that country has been chiefly Rio de Janeiro. Furthermore, local police forces seem to copy military techniques from other countries to confront gangs in the favelas (Varsori 2021). However, as Nadelmann (1988) argues, drug policy is an export acquired not only by pressure but also by imitation. Moreover, as Mora (1996) defends, the effect of militarised efforts of Andean governments in South America trickled over to Brazil. Eventually, the Brazilian military has

taken advantage of the lack of civil control to share its techniques with police forces to gain political power (Lima, Silva, and Rudzit 2021).

Data trends in Figure 1 show some fundamental changes in Latin America: the end of civil wars, and the beginning of military-driven drug policies and gang suppression policies. Also, as shown in Figure 2, Latin America has higher homicide rates globally (Mandela 2002; UNODC 2019). A case country that might seem to be an outlier is Venezuela. However, Kronick (2020) has recently found that military drug operations in Colombia have transferred the conflict to the Venezuelan territory. These findings show how criminal wars must be researched more from a regional scope. Criminal wars in some countries may spread to others.

Following the previous arguments, I summarise part of this debate in Table 1. The table shows the commonly used concepts in the most critical research about Latin American violence. I reviewed them through the conceptual tests by Gerring (1999). Overall, concept overstretching, too widely arching conceptual limits, and primarily non-differentiation from similar phenomena necessitates a new concept, the one I propose in the next section. The most frequent problem is that other concepts do not help to differentiate criminal violence in Latin America from other types of conflict. Indeed, concepts are ideal types and must be adjusted to material conditions. Moreover, transposing the grey zones directly into the conceptual frameworks does not clarify comparisons. The second most common problem is that by linking the concept to either just democracy or just drugs leaves other illicit markets or types of political regimes out of the question. Other concepts describe a part of the phenomenon as militarisation or anomie (paired for ecologies). Moreover, and finally, most authors recognise that criminal organisations are non-state armed groups. Mafias, gangs and cartels can be those. Being one of those should mean immediately that these are non-state armed groups.

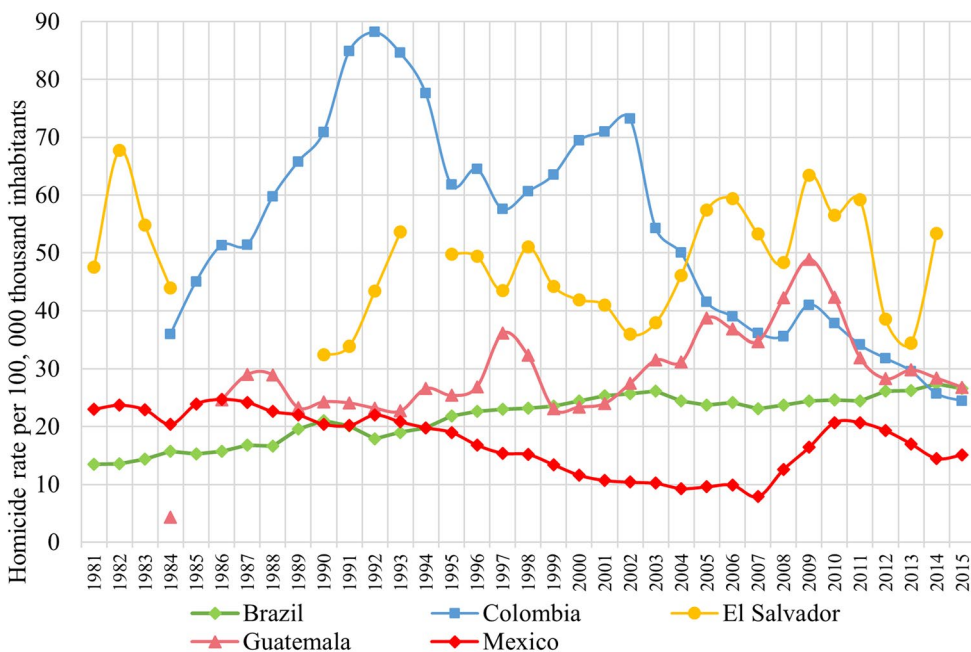


Figure 1. Homicide rates in Latin America from 1981 to 2015. Source: World Health Organization Causes of Death Database.

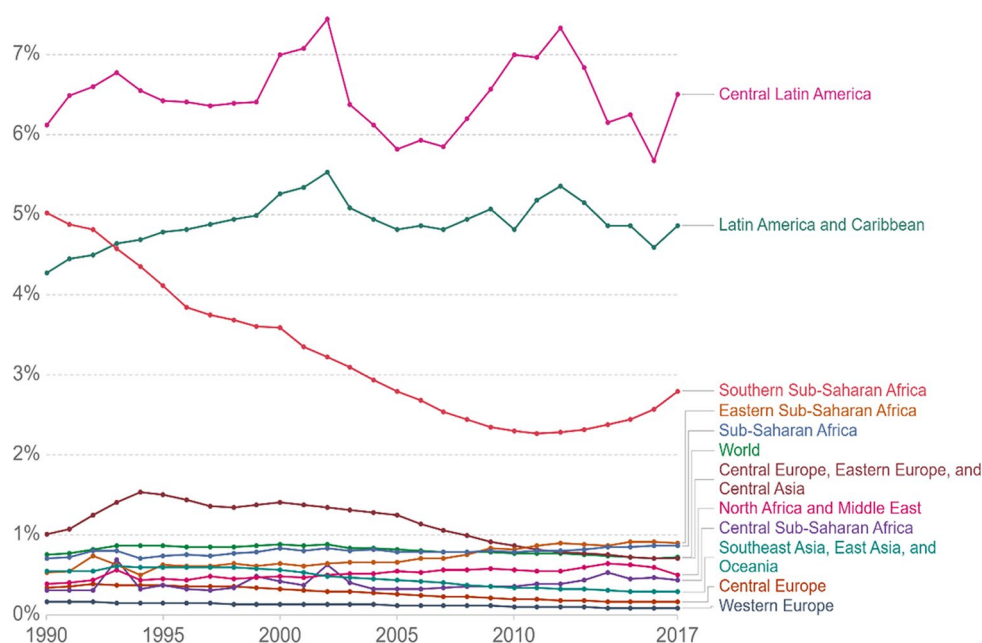


Figure 2. Share of deaths from homicide by regions, 1990 to 2017.

Source: Global Burden of Disease Collaborative Network. Global Burden of Disease Study 2017. Results. Seattle, United States: Institute for Health Metrics and Evaluation (IHME), 2018. Map: <https://ourworldindata.org/homicides>.

A criminal war concept

Following this argument, I propose the concept of criminal war: *a violent conflict between the state and criminal organisations, or between criminal organisations. The onset, duration and continuation of which are fostered by local or national governments' use of militarised force to implement a regime of prohibition of any illicit goods or activities. In these conflicts, criminal organisations form private armies to resist, combat and lobby against the strategies of the state and other criminal organisations to protect their profitable illicit activities.* In the following paragraphs, I will defend this concept.

Regarding the political economy dimension of the conflict, the critical element of the concept is that the prosecution of illicit markets is a result of the political decision to implement prohibition regimes. Furthermore, as discussed before, these prohibition regimes are based on international treaties or national criminal law. Concerning the military strategy side, the use of physical force to enforce the prohibition regime aims to gain surrender after the criminal organisations no longer have any capacity to fight (Echevarria 2017).

According to Sartori's (1970) view, I defend that this concept can travel with parsimony because it does not explicitly mention the drug prohibition regime historically grounded in the twentieth century. Also, it recognises that any other prohibition regime, either national or international, can be implemented by the military, causing a violent conflict beyond disorganised crime. Based on Gerring's (1999) classification, a good concept allows clear differentiation from other types of conflict. This concept helps to classify and gather two familiar fields of knowledge: crime and conflict studies.

Table 1. Concepts relating to Latin American violence and criticisms.

Concept	Organisation	Main authors	Criticism under Gerring's (1999) terms
Economic civil war/new war/criminal insurgency	Criminal rebels or insurgencies	Schedler (2018); De la Calle and Schedler (2021); Sullivan and Elkus (2008); Bunker and Sullivan (2010)	No differentiation from other concepts of conflict.
War on drugs/drug violence	Organised criminal groups	Durán-Martínez (2015, 2017); Trejo and Ley (2020); Osorio (2015)	It was not parsimonious enough because it created a narrow field focusing on drugs.
Militarisation/security crisis/security gap	Cartels	Kenny and Serrano (2013); Flores-Macías and Zarkin (2021); Pion-Berlin and Trinkunas (2011)	Insufficient depth to account for the wider dynamics, just a partial explanation.
Criminal violence/urban violence	Organised crime	Moncada (2013); Cruz (2010); Kronick (2020); Auyero, Bourgois, and Scheper-Hughes (2015)	These concepts do not account for the difference between regular criminal violence and massive organised criminal violence.
Violence democracies	Gangs	Arias (2006); Whitehead, Fair, and Payne (2010);	Any democracy can be named by any national feature but excludes hybrid regimes like Venezuela, so not parsimonious.
High violence equilibrium	Organised crime	Bergman (2018)	This concept does not differentiate other high levels of conflict violence and does not recognise the conflict dynamics.
Homicidal ecologies	Gangs	Yashar (2018)	Not familiar enough with other research fields, lack of utility to understand conflict dynamics by assuming a steady violence status.
Criminal war (cartel–state conflict)	Cartels	Lessing (2015, 2017)	Criminal war has more resonance than this specific feature of the concept. Rather than opposing turf wars, those are phases of criminal wars.

In comparative politics terms, although this concept comes from the aforementioned examples of Latin America, some other regions' cases of widespread violence regarding criminal violence could be analysed using these lenses. However, there have been cases of non-organised conflict-based violence. So classifying a case requires careful examination. For example, there have been street gang violence and rising crime rates in Argentina and Chile in recent years. The US case with alcohol prohibition in the early twentieth century and current high rates of violence in US cities could be analysed; however, they do not seem to be cases of militarised force, but rather abuses of the police force. In Peru or Colombia, guerrillas could use drug trafficking to fund their political organisations, which are not motivated by profit. The same can be said for Afghanistan's opium production, which is used, prosecuted or tolerated by the Taliban in-between foreign interventions.

It is crucial to revise essential questions regarding building criminal wars literature upon convergences with other fields. One of the most critical matters is defining the threshold

behind how to describe it as war. Some scholars studying violence in Latin America have avoided using the term war because of the political and legal implications that it could entail. However, other scholars use the term *war on drugs* freely. It helps to differentiate this from other forms of violence in Latin America. For example, there are guerrillas, vigilantes, para-military groups and gangs.

Fortunately, Freedman (2012, 20) has made critical remarks regarding this debate. Freedman argues that wars are a perennial human phenomenon regarding human organisations, and the modern era of states shapes our contemporary view. Freedman argues that war can happen on small scales, with diverse motives (not only ideological), and can also be about illicit markets. As Davis (2009) argues, it is understandable that insecurity in Latin America also seems to be a state-building challenge for constructing central authority, not necessarily a war. However, in the terms of Freedman, Howard (1984) and Echevarria (2017), the critical element of wars is the willingness to use deadly force to get the enemy to surrender to fulfil wider strategic goals.

War is ingrained in the political will to use violence against an opponent, in the tradition of Clausewitz's (2008) study of conflict. A common misunderstanding of researchers on crime and violence in Latin America is that they believe political objectives are ideological. This has happened in the field of genocides (Maynard 2022). That explains why they struggle with defining the violence in the region, either by avoiding the word 'war' or using it without conceptual care. Even military historians have been clear that ideology is not the only driver of war (Soutou 2014). Political goals are not the same as ideological purposes or changes of the ruling class. Indeed, revolutions and civil war have ideological motivations, but the ideology it is rooted in is insurgencies' organisational goals, not individual non-state combatants' motives. However, just from reading Freedman's argument, war comes from the challenger, against the state, and from the state itself.

Indeed, it seems paradoxical that weak states can wage war against seemingly powerful criminal organisations. Literature about mafias usually empathises that the state tolerates and negotiates with them, either by peaceful pacts or corruption (Gambetta 1996, 214–220). However, it is crucial to avoid the scholars and journalists who use the 'failed state' as a valid concept by misunderstanding Weber's concept (1946, 33; 1978, 90) as an absolute rather than an ideal type. The state gathers bureaucracy and leadership in various organisations, so implementing the prohibition regime can stand. At the same time, there can be corruption within organisations and bureaucrats, including the military (Trejo and Ley 2020).

The presence of the state in Latin America has not been historically uniform in the territory. Moreover, government policy capacities are considerably underdeveloped. These structural conditions came from the urgent need to build professional armies for civil and conventional wars in Latin America during the nineteenth century. Therefore, troops came first, civil bureaucracies later, and police enforcement agencies last until today (O'Donnell 1993; Mann 2008). The state's formation in Latin America diverges from the European states' state-building process (Centeno 2002). Nevertheless, they concur that political elites sometimes faced warlords and bandits disputing the central authority (Hobsbawm 2000; Olson 1993; Tilly 1985). However, it is not uncommon to think that criminal wars are also part of the process of state-building in the region.

There is a wide debate on the legal side about the nature of violent criminal organisations. Rodgers and Muggah (2009) argued that Central American gangs could be understood as non-state armed groups. Effectively, they argue that these gangs do not seek to overthrow

the state, just to undermine certain functions. Although I concur with this assessment by considering gangs as parts of criminal wars, I think the academic fields of international humanitarian law (IHL) and national law and the international organisms that discuss these matters must be careful in adaptating their precepts for criminal organisations.

As Rodiles (2018) argues, simplifying the nature of violence in Latin America as non-international armed conflict as it is classically understood in IHL could reinforce violent military interventions. Unfortunately, wars usually begin without any legal mechanism behind them, although it can be claimed these are illicit. The facts that define social research are the ground events, not legality.

Presidents in the region have proposed several names for their efforts: *democratic security policy* in the case of Uribe in Colombia, *mano dura* or *super mano dura* in the case of presidents Francisco Flores and Antonio Saca in El Salvador, and *combat against organised crime* for Felipe Calderón in Mexico. These policies created the now known criminal wars without legal declarations. However, as Trevino-Rangel et al. (2022) argue, governments have avoided IHL by creating new legal frameworks under the umbrella of the international drug prohibition and transnational organised crime regime (Andreas and Nadelmann 2008; Berdal and Serrano 2002, Andreas and Price 2001). In strategic terms (Howard 1984), these regimes are used as a political justification for the use of force. In other terms, military securitisation of criminal prosecution in Latin America already happened.

It is natural that scholars are finding elements of previous non-international armed conflicts (NIACs) in Latin American cases (Comer and Mburu 2016). Understandably, bringing IHL to the table creates the possibility to scrutinise governments' use of force (Sassòli and Olson 2008; Padin 2022). The tactical use of violence and territorial disputes by criminal organisations are the main part of this side of the argument. But as David (2014) argued, the existence of this figure has been discussed in international jurisprudence because it is still a challenging topic. As proof of this, Kalmanovitz (2022) argues that criminal organisations could not comply with IHL standards to be responsive to international mechanisms, even if they use tactical violence and have territorial disputes against the state. The IHL field is rightfully responding to the political and field consequences of qualifying a conflict as a NAIC, but is not necessarily in sync with social sciences research. As David (2014) argued, the existence of these conflicts precedes the defined essence of them. NIACs are a nascent figure in IHL trying to grapple with the complexity of civil wars in the twentieth century.

Certainly, high homicide rates can not constitute a war marker. On different sides, Reuter (1983) and Collins (2009) agree that those fights and retaliations driven by local conflict are part of urban street violence. From a different perspective, Eisner (2001, 2003), echoing Norbert Elias's work, argues that violence comes from other expressions, such as honour killings. Bergman (2018, 73–77), endorsing social disorganisation and opportunity theory in general, proposes that economic growth and social processes also play a role in local violent disputes. These authors do not deny violence's organisation. Nevertheless, they are sceptical that there is only one driver behind all homicides.

In this debate, the Uppsala Conflict Data Program (UCDP) (Sundberg, Eck, and Kreutz 2012, 352–353) has defined 'non-state conflict as the use of armed force between two organized armed groups, neither of which is the government of a state. ... In state-based conflicts, UCDP requires an incompatibility over government and/or territory'. However, they discarded ideological purposes as too subjective for classifying conflicts. Naturally, the UCDP non-state conflict concept coincides with the interpretation by Freedman of Clausewitz's conception

of war in the realm of violent criminal activities. However, it is problematic because their classification is so broad that it includes non-state conflicts like Brazil, Colombia, Mexico, El Salvador and Guatemala, and divergent cases such as Peru, Bolivia and Venezuela.

Again, as other scholars did, the UCDP examined non-state actors' motivations but disregarded governments' political willingness to use the military to deploy wars. By just counting and classifying without clear political distinctions, they merge ongoing criminal wars with cases with large-scale homicide rates. Some countries may be experiencing more interpersonal street violence rather than drug trafficking-related violence. And counting deaths as conflict evidence is problematic for other reasons. Simultaneously, Bergman (2018, 315) shows the low quality of homicide data in Latin America. Krause (2013) questions whether researchers can immediately attribute those deaths to the conflict.

Still, the historical coincidences between the international drug prohibition regime's policies and homicide trends have proven a more amicable explanation for increasing violence. Nevertheless, to wind up this argument, I interrogate around the UCDP concept because it excludes the state's motivations. They commit the same misidentification that brings a country with high-scale violence into the conflict realm without considering the dimension of prohibition regimes. I argue that massive violence must be understood within a theoretical framework regarding structural and meso-organisational conflict processes that war studies bring.

Governmental use of violent enforcement causes what Bergman (2018) calls a *high violent equilibrium*, what Lessing (2017) calls *fierce lobbying*, and what Castillo and Kronick (2020) call *interdiction*. In response, criminal organisations must dissuade the state from using violence to disrupt their trafficking activities (Phillips and Ríos 2020; Durán-Martínez 2015; Phillips 2015). Moreover, they use violence strategically to confuse authorities into confronting their competitors (Atuesta 2017). Even these organisations can employ violence on a large scale to provoke a de-escalation from the government (Atuesta and Ponce 2017). Also, these tactics can create an opportunity for monopolising trafficking routes (Ramírez-de-Garay 2016).

On the other hand, some researchers point out that criminal organisations also look to monopolising regions. Agents of the state grant protection via corrupt agreements, as the mafia literature usually notes. These findings converge with the civil war literature that Lessing (2017) has identified: criminal governance. Criminal organisations, as well as guerrillas, tend to govern spaces to advance their objectives. Indeed, their goals are not the same, but buying territorial management and corrupting authorities are both part of conflict and war (Lessing 2018; Arias 2006; Ley, Mattiace and Trejo 2019; Magaloni, Franco-Vivanco, and Melo 2020; Pansters 2018). On this matter, rather than an apparent contradicting fact, war-making, state weakness and criminal governance are deeply enmeshed parts of the complexity of wars.

Conclusions

The debate about violence in Latin America sheds light on the necessity for broader interdisciplinary conceptual debates to understand novel phenomena to craft careful studies. Understandably, war, conflict and organised crime gather discussions from close but not well-communicated fields of knowledge. Due to the temporality of the rise of homicides in

the region, the debates about civil wars in Africa or Eastern Europe, or crime in Europe, filtered easily to explain a novel situation in a region that traditionally experienced political violence.

Indeed, criminal wars might seem new to some observers. However, the phenomenon above is not, and there have been violent conflicts over illicit goods throughout human history. These wars are a by-product of a regional political economy of drug prohibition, and therefore are profoundly historical Latin American events. Fortunately, by carefully examining the evidence – qualitative and quantitative – recent scholars have shaped a detailed picture of the situation instead of using concepts without considering their inner contested debates. This is the pathway forward: building a research programme on the ongoing conflicts and using the analytical tools of the diversity of fields to draft a middle-ground theory of criminal wars.

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